

25CHCV03776 25CHCV03776

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-03

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Case Number: 25CHCV03776 Hearing Date: August 3, 2026 Dept: F46

Dept. F-46

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DEFENDANT AMERICAN CREDIT ACCEPTANCE, LLC'S MOTION TO
COMPEL ARBITRATION AND STAY ACTION

Motion filed on May 26, 2026.

MOVING PARTY: Defendant American Credit Acceptance, LLC
(Defendant)

RESPONDING PARTY: None.

NOTICE: Defective. The moving papers were served on
self-represented Plaintiff Deandra M. Marshall (Plaintiff) by email only, and
the record does not establish Plaintiff's express consent to electronic
service.

RELIEF REQUESTED: An order compelling Plaintiff to arbitrate
her claims and staying this action pending arbitration.

RULING: Continued to September 16, 2026, at 8:30 a.m. in
Department F-46.

BACKGROUND/DISCUSSION

On October 23, 2025, Deandra M. Marshall (Plaintiff), in propria persona, filed the Complaint against American Credit Acceptance, LLC (Defendant). Defendant filed its first motion to compel arbitration on March 13, 2026. On May 18, 2026, the Court denied the motion without prejudice because the contract containing the arbitration provision was not attached and the supporting declaration did not comply with Code of Civil Procedure section 2015.5. Defendant filed the renewed motion on May 26, 2026, supported by the declaration of Courtney Griffin and the Retail Installment Sale Contract. No timely opposition was filed.

Code of Civil Procedure section 1010.6, subdivision (c)(3), provides that an unrepresented party may expressly consent to electronic service by serving and filing a notice or by affirmatively consenting through the court or its electronic filing service provider while providing an electronic service address. "The act of electronic filing shall not be construed as express consent." (Code Civ. Proc., § 1010.6, subd. (c)(3).) California Rules of Court, rule 2.251(b)(1), sets forth the procedures for providing that consent.

Here, Defendant served the motion and supporting declaration on self-represented Plaintiff by email only. The record does not show that Plaintiff served and filed a notice accepting electronic service, filed form EFS-005-CV, or affirmatively consented through the court or its electronic filing service provider. Plaintiff's prior electronic filing and use of email to serve Defendant do not establish express consent. Although the Court is inclined to grant the motion, the Court will continue the hearing to permit proper service on Plaintiff.

CONCLUSION

The hearing is continued to September 16, 2026, at 8:30 a.m. in Department F-46. Defendant shall properly serve the motion and supporting papers no later than August 7, 2026, and shall file proof of service.